

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

-----X  
AARON CEDRES,

Plaintiff,

-against-

THE CITY OF NEW YORK, PO EZEQUIEL GUTIERREZ  
SHIELD #4596 OF THE 48 PCT., PO GUTIERREZ'S  
PARTNER UNDER ARREST ID B13670749 S/H/A  
JOHN/JANE DOE 1, PO CHRISTOPHER CESARZ  
SHIELD #4249 OF THE 48 PCT., PO HOELMY RAMOS  
SHIELD #4720 OF THE 48 PCT., PO RAMOS' PARTNER  
UNDER ARREST ID B13670749 S/H/A JOHN/JANE DOE  
2, OTHER NYPD POLICE OFFICERS S/H/A JOHN/JANE  
DOE 3-5,

Defendants.  
-----X

Index No.:

Date Purchased:

Plaintiff designates BRONX  
COUNTY as venue pursuant to  
CPLR 504(3) based upon where  
the cause of action arose

Plaintiff's Address:

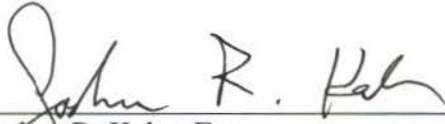
3080 Park Avenue, Apt. 7C  
Bronx, NY 11743

**SUMMONS**

**TO THE ABOVE NAMED DEFENDANT:**

**You ARE HEREBY SUMMONED**, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Mineola, New York  
March 7, 2016

  
\_\_\_\_\_  
Joshua R. Kahn, Esq.  
Schalk, Ciaccio & Kahn, P.C.  
Attorney for Plaintiff  
332 Willis Ave #2  
Mineola, NY 11501  
(516)-858-1266

Defendants' Addresses:

City of New York  
100 Church Street  
New York, NY 10007

PO Ezequiel Gutierrez, Shield 4596  
New York City Police Department  
048 Pct. Detective's Squad  
450 Cross Bronx Expressway  
Bronx, NY 10457

PO Christopher Cesarz, Shield 4249  
New York City Police Department  
048 Pct. Detective's Squad  
450 Cross Bronx Expressway  
Bronx, NY 10457

Hoelmy Ramos, Shield 4720  
New York City Police Department  
048 Pct. Detective's Squad  
450 Cross Bronx Expressway  
Bronx, NY 10457

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

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AARON CEDRES,

Index No.:

Date Purchased:

Plaintiff,

-against-

**VERIFIED COMPLAINT**

THE CITY OF NEW YORK, PO EZEQUIEL GUTIERREZ  
SHIELD #4596 OF THE 48 PCT., PO GUTIERREZ'S  
PARTNER UNDER ARREST ID B13670749 S/H/A  
JOHN/JANE DOE 1, PO CHRISTOPHER CESARZ  
SHIELD #4249 OF THE 48 PCT., PO HOELMY RAMOS  
SHIELD #4720 OF THE 48 PCT., PO RAMOS' PARTNER  
UNDER ARREST ID B13670749 S/H/A JOHN/JANE DOE  
2, OTHER NYPD POLICE OFFICERS S/H/A JOHN/JANE  
DOE 3-5,

Defendants.

-----X

AARON CEDRES, by his attorneys, SCHALK CIACCIO & KAHN, P.C., respectfully  
alleges as follows:

**AS AND FOR A FIRST CAUSE OF ACTION**

1. At all times mentioned, Plaintiff AARON CEDRES was a resident of Bronx County, City and State of New York.
2. At all times mentioned, Defendant CITY OF NEW YORK, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
3. On or about the 6<sup>th</sup> day of July, 2015 and within ninety (90) days after some of the claims herein arose, the Plaintiff served a Notice of Claim in writing sworn to on their behalf upon the Defendant CITY OF NEW YORK, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised

the Defendant CITY OF NEW YORK, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

4. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.
5. The Plaintiff has complied with the request of the municipal Defendant's for an oral examination pursuant to Section 50-H of the General Municipal Law and/or the Public Authorities Law.
6. Upon information and belief, at all times mentioned, Defendants, PO EZEQUIEL GUTIERREZ SHIELD #4596 OF THE 48 PCT., PO GUTIERREZ'S PARTNER UNDER ARREST ID B13670749 S/H/A JOHN/JANE DOE 1, PO CHRISTOPHER CESARZ SHIELD #4249 OF THE 48 PCT., PO HOELMY RAMOS SHIELD #4720 OF THE 48 PCT., PO RAMOS' PARTNER UNDER ARREST ID B13670749 S/H/A JOHN/JANE DOE 2, OTHER NYPD POLICE OFFICERS S/H/A JOHN/JANE DOE 3-5, were and are police officers of the Defendant THE CITY OF NEW YORK, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, THE CITY OF NEW YORK.
7. On or about October 11, 2013, at approximately 8:50 A.M. inside of 450 Cross Bronx Expressway, County of Bronx, State of New York the Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff AARON CEDRES, in an excessive manner about his person, causing him physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal



touching nor was it privileged by law.

**AS AND FOR A SECOND CAUSE OF ACTION**

8. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs “1” through “7” with full force and effect as though set forth at length herein.
9. On or about October 11, 2013, at approximately 8:50 A.M. in the vicinity of 450 Cross Bronx Expressway, County of Bronx, State of New York the Defendants, jointly and severally did place Plaintiff AARON CEDRES in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike and restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

**AS AND FOR A THIRD CAUSE OF ACTION**

10. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs “1” through “9” with full force and effect as though set forth at length herein.
11. On or about October 11, 2013, at approximately 8:50 A.M. inside of 450 Cross Bronx Expressway, County of Bronx, State of New York the Defendants, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained him and his liberty and then took him into custody to a police station in the County of the Bronx and there charged him with the crimes on Docket No. 2013BX059107. The Plaintiff was thereafter held in custody over the course of approximately three (3) days or approximately seventy-two (72) hours until he was bailed out. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

**AS AND FOR A FOURTH CAUSE OF ACTION**

12. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs “1” through “11” with full force and effect as though set forth at length herein.
13. On or about October 11, 2013, at approximately 8:50 A.M. in the vicinity of 450 Cross Bronx Expressway, County of Bronx, State of New York the Defendants, jointly and severally without any valid warrant, order or other legal process and without any legal right, wrongfully and unlawfully imprisoned the Plaintiff, restrained him and his liberty and then took him into custody and causing him to be incarcerated as a detainee in the City of New York’s Correctional Facility. The Plaintiff was thereafter held in custody over the course of approximately three (3) days or approximately seventy-two (72) hours before he was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

**AS AND FOR A FIFTH CAUSE OF ACTION**

14. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs “1” through “13” with full force and effect as though set forth at length herein.
15. Upon information and belief, on or about October 11, 2013 and from that time until the dismissal of charges on or about May 29, 2015 which was a favorable termination for the accused by the Honorable T. Webber presiding at, Bronx County Supreme Court, Defendants, PO EZEQUIEL GUTIERREZ SHIELD #4596 OF THE 48 PCT., PO GUTIERREZ’S PARTNER UNDER ARREST ID B13670749 S/H/A JOHN/JANE DOE 1, PO CHRISTOPHER CESARZ SHIELD #4249 OF THE 48 PCT., PO HOELMY RAMOS SHIELD #4720 OF THE 48 PCT., PO RAMOS’ PARTNER

UNDER ARREST ID B13670749 S/H/A JOHN/JANE DOE 2, OTHER NYPD POLICE OFFICERS S/H/A JOHN/JANE DOE 3-5, deliberately and maliciously prosecuted Plaintiff AARON CEDRES, an innocent man without any probable cause whatsoever, by filing or causing a criminal court complaint to be filed in the Criminal Court of the City of New York, Bronx County, for the purpose of falsely accusing the plaintiff of violations of the criminal laws of the State of New York.

16. The Defendants, jointly and severally, their agents, servants or employees failed to take reasonable steps to stop the prosecution of the Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's office to induce prosecution of the Plaintiff and due to the absence of probable cause malice can be inferred.
17. The commencement of these criminal proceedings under Docket No. 2013BX059107 was malicious and began in malice and without probable cause, so that the proceedings could succeed by the Defendants.
18. As a result of the malicious prosecution, Plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution. The Plaintiff made multiple court appearances to defend his liberty against these unjust charges.

**AS AND FOR A SIXTH CAUSE OF ACTION**

**(This Cause of action only applies against the Individually named Police Officers not the City of New York or officers sued in their official capacity)**

19. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "18" as it set forth at length herein.
20. Defendants, PO EZEQUIEL GUTIERREZ SHIELD #4596 OF THE 48 PCT., PO



GUTIERREZ'S PARTNER UNDER ARREST ID B13670749 S/H/A JOHN/JANE DOE 1, PO CHRISTOPHER CESARZ SHIELD #4249 OF THE 48 PCT., PO HOELMY RAMOS SHIELD #4720 OF THE 48 PCT., PO RAMOS' PARTNER UNDER ARREST ID B13670749 S/H/A JOHN/JANE DOE 2, OTHER NYPD POLICE OFFICERS S/H/A JOHN/JANE DOE 3-5, were at all times relevant, duly appointed and acting officers of the City of New York Police Department.

21. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
22. Plaintiff AARON CEDRES is and at all times relevant herein was a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983.
23. The Defendant CITY OF NEW YORK is a municipality duly incorporated under the laws of the State of New York.
24. On or about October 11, 2013, the Defendants, armed police, while effectuating the seizure of the Plaintiff AARON CEDRES, did search, seize, assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested, unlawfully imprisoned and maliciously prosecuted without the Defendants possessing probable cause to do so.
25. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution:
  - a. Freedom from assault to his person;



- b. Freedom from battery to his person;
  - c. Freedom from illegal search and seizure;
  - d. Freedom from false arrest;
  - e. Freedom from malicious prosecution;
  - f. Freedom from the use of excessive force during the arrest process;
  - g. Freedom from unlawful imprisonment;
  - h. Freedom from loss of liberty.
26. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights under the fourth and fourteenth amendments of the United States Constitution.
27. The direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering, all to his detriment.

**WHEREFORE,** Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court where otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case and punitive damages.

Dated: Mineola, New York  
March 7, 2016

  
Joshua R. Kahn, Esq.  
Schalk, Ciaccio & Kahn, P.C.  
Attorney for Plaintiff  
332 Willis Ave #2  
Mineola, NY 11501  
(516)-858-1266

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

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AARON CEDRES,

Index No.:

Date Purchased:

Plaintiff,

**VERIFICATION**

-against-

THE CITY OF NEW YORK, PO EZEQUIEL GUTIERREZ  
SHIELD #4596 OF THE 48 PCT., PO GUTIERREZ'S  
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2, OTHER NYPD POLICE OFFICERS S/H/A JOHN/JANE  
DOE 3-5,

Defendants.  
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I, **JOSHUA KAHN**, an attorney admitted to practice in the courts of New York State, state that I am a member of the firm of **SCHALK, CIACCIO & KAHN, P.C.** the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Mineola, New York  
March 7, 2016

  
\_\_\_\_\_  
Joshua R. Kahn, Esq.  
Schalk, Ciaccio & Kahn, P.C.  
Attorney for Plaintiff  
332 Willis Ave #2  
Mineola, NY 11501  
(516)-858-1266



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THE CITY OF NEW YORK, PO EZEQUIEL GUTIERREZ SHIELD #4596 OF THE 48 PCT., PO GUTIERREZ'S PARTNER UNDER ARREST ID B13670749 S/H/A JOHN/JANE DOE 1, PO CHRISTOPHER CESARZ SHIELD #4249 OF THE 48 PCT., PO HOELMY RAMOS SHIELD #4720 OF THE 48 PCT., PO RAMOS' PARTNER UNDER ARREST ID B13670749 S/H/A JOHN/JANE DOE 2, OTHER NYPD POLICE OFFICERS S/H/A JOHN/JANE DOE 3-5,

Defendants.

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**SUMMONS AND VERIFIED COMPLAINT**

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**SCHALK, CIACCIO & KAHN, P.C.**

*Attorney for Plaintiff*

*Office and Post Office Address, Telephone*

332 Willis Avenue

Mineola, New York 11501

Tel: (516) 858-1266

Fax: (516) 977-3260

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To: City of New York  
100 Church Street  
New York, NY 10007

PO Ezequiel Gutierrez, Shield 4596  
New York City Police Department  
048 Pct. Detective's Squad  
450 Cross Bronx Expressway  
Bronx, NY 10457

Hoelmy Ramos, Shield 4720  
New York City Police Department  
048 Pct. Detective's Squad  
450 Cross Bronx Expressway  
Bronx, NY 10457

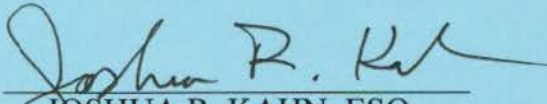
PO Christopher Cesarz, Shield 4249  
New York City Police Department  
048 Pct. Detective's Squad  
450 Cross Bronx Expressway  
Bronx, NY 10457

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**Certification pursuant to 22 NYCRR 130-1.1(a)**

It is hereby certified that, to the best of the undersigned's knowledge, information and belief, formed after an inquiry reasonable under the circumstances, the presentation of the paper and/or the contentions herein are not frivolous as defined in section 130-1.1(a).

3/7/2016  
Date

  
JOSHUA R. KAHN, ESQ.